

22STCV22479 22STCV22479

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-16

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Case Number: 22STCV22479 Hearing Date: September 16, 2026 Dept: 617

Dept.

617

Date:

9-16-26

Case

#: 22STCV22479

Trial

Date: N/A

VACATE ORDER

MOVING

PARTY: Plaintiff, Albert Agdaian

RESPONDING

PARTY: Defendant, Renaissance Maintenance Corporation

RELIEF

REQUESTED

Motion

to Vacate Order

SUMMARY

OF ACTION

Plaintiff

Albert Agdaian sued Defendant Renaissance Maintenance Corporation after \$67,153 was deducted from the sale proceeds of his property pursuant to a demand on escrow by Defendant to claim reimbursement for landscaping work on Plaintiff's property. Defendant moved for summary judgment on February 2, 2024 to which Plaintiff did not file an opposition. On April 18, 2024, the Court granted summary judgment in favor of Defendant and judgment was entered on May 16, 2024. Unbeknownst to the parties and the Court, Plaintiff's lawyer passed away on March 1, 2024. On July 24, 2024, Plaintiff filed a motion to vacate summary judgment, which was granted on November 6, 2024. Defendant again moved for summary judgment on December 31, 2024 and Plaintiff did not oppose this motion either. Summary judgment was subsequently entered in favor of Defendant on July 3, 2025. On October 3, 2025, Plaintiff filed another motion to vacate summary judgment, which was denied.

RULING: Denied.

Request

for Judicial Notice: Granted in part.

The

Court takes judicial notice of the existence of Plaintiff's complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of the Court's February 4, 2026 minute order and the truth of the results reached therein. (Id. at pp. 885-86.) The Court does not take judicial notice of the remaining documents as they are immaterial to disposition of the motion.

Plaintiff

seeks both mandatory and discretionary relief from the Court's February 4, 2026 order denying his motion to vacate summary judgment. Plaintiff argues that relief is warranted because the microphone on his computer was not working during the hearing and he was unable to present oral argument. Defendant opposes the motion, contending that granting relief would prejudice it because Plaintiff has been dilatory in prosecuting the case and that ultimately vacating the summary judgment order would be futile. As explained in the Court's prior ruling, Plaintiff, as a self-represented litigant, may not seek

mandatory relief under Code of Civil Procedure section 473, subdivision (b). (McClain v. Kissler (2019) 39 Cal.App.5th 399, 428-29.) The sole issue is thus whether Plaintiff is entitled to discretionary relief. The Court concludes that he is not, and the motion to vacate is denied.

Assuming

that the malfunctioning of Plaintiff's microphone constitutes excusable neglect, the Court nonetheless declines to grant him relief from the order. Plaintiff does not elaborate what further argument he would have made at the hearing or how such argument may have impacted the Court's prior order denying him relief. The Court considered Plaintiff's reasons for his failure to oppose the summary judgment motion and concluded that they did not constitute excusable neglect under the statute. Plaintiff's motion is therefore denied.

Plaintiff

to give notice.